

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

ELIZABETH RODRIGUEZ,

Plaintiff,

v.

RONALD ABARO DDS, INC. dba CHINO
FAMILY DENTAL, et al.,

Defendants.

Case No.: CIVSB2226979

**[TENTATIVE] ORDER DENYING
MOTION FOR SUMMARY
ADJUDICATION FILED BY
DEFENDANT RONALD ABARO
DDS, INC.**

I. INTRODUCTION

This is a wage and hour and employment litigation. On November 28, 2022, Plaintiff Elizabeth Rodriguez filed her Complaint against Defendants Ronald Abaro DDS, Inc. dba Chino Family Dental (CFD), Ronald Abaro, Carlos Bermudez, Ianina Cheung, and other parties who obtained summary adjudication orders in their favor. The operative First Amended Complaint pleads 22 causes of action. Defendants answered.

A. The FAC's Allegations

The FAC alleges Rodriguez was employed by CFD as a registered dental assistant (§ 27). She suffers from depression and anxiety (§ 28). In the course of her employment, supervisor

Bermudez would stand over her and stare at her, talk down to her and overexplain things, and address her unprofessionally in front of patients. Bermudez, a married man, and coworker Cheung would kiss and engage in an overly friendly manner with each other that made Plaintiff uncomfortable. Additionally, Cheung started inappropriately touching Rodriguez, and on one occasion, it so upset her that she had a panic attack and had to leave work early and be put off work for a few days. Also, manager Erika Laza called Rodriguez hard-headed in front of patients (¶¶ 29-33, 36, 42). On one occasion, Rodriguez was assigned to work with a dentist who may have had Covid with no requirement that he be off work or take a test before returning to work. Yet, when Rodriguez took off sick unrelated to any Covid symptoms, she was required to obtain a negative Covid test before returning (¶¶ 34-35, 39). Further, Rodriguez requested a day off on two different occasions to assist family and was denied those time-off requests (¶¶ 38, 40). Plaintiff was also subjected to false and improper write-ups and warnings. Finally, due to the stress at work, she quit on May 23, 2021 (¶¶ 41, 43, 45).

The FAC also alleges that Rodriguez was not provided uninterrupted meals and rest breaks, which resulted in the premium wages not being paid or recorded in her wage statements. She was not reimbursed for the required Covid test she took, and for vehicle expenses when she traveled to different locations (¶¶ 39, 46-49, 62, 68, 81-82, 90). When she was constructively terminated, Rodriguez did not receive her final paycheck in a timely manner (¶ 75).

Finally, the FAC alleges Defendant Abaro was an owner, director, officer, or managing agent of CFD and personally involved in the wage matters. Alternatively, he was the alter ego of CFD (¶¶ 13-14, 17).

Defendant CFD moves for summary adjudication of the emotional distress damages. Plaintiff Rodriguez opposes. Defendant CFD replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. WHY THE MOTION SHOULD BE DENIED

Defendant CFD seeks to obtain summary adjudication of the emotional distress damages pled within the 6th-17th and 22nd causes of action.

The adjudication of damages under Code of Civil Procedure section 437c, subdivision (f)(1), is limited to punitive damages:

Accordingly, the current version of the statute, like the former version, contains parallel independent and dependent clauses which must be read together. Thus, when the independent clause is read in conjunction with its corresponding qualifying clause, the statute provides that a party may move for summary adjudication as to “one or more claims for damages” if that party contends that “there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code.” The reference to “one or more claims for damages” in the first part of the sentence is thus still qualified by, and limited to, punitive damages. We submit that there is no other reasonable interpretation of the sentence which gives effect to all of its words....

We also conclude that in order to give effect to the first sentence of subdivision (f)(1), the second sentence must also be read in conjunction with the first sentence, so that the reference to “a claim for damages” must be qualified as referring to the previously defined claim for punitive damages.

(*DeCastro West Chodorow & Burns, Inc. v. Superior Court (Initial Amalgamation, Ltd.)* (1996) 47 Cal.App.4th 410, 421.) Summary adjudication is not permitted of any single item of compensatory damages that does not dispose of an entire cause of action. (*Id.* at p. 422.)

Thus, Defendant CFD’s Motion to adjudicate emotional distress damages is not a proper motion for summary adjudication under section 437c, subdivision (f)(1).

The Court could adjudicate emotional distress damages only if the parties complied with Code of Civil Procedure section 437c, subdivision (t). This requires a joint stipulation requesting adjudication, judicial authorization to file the motion, and an explicit declaration in the motion

citing subdivision (t). Because the parties did not follow this procedure, subdivision (t) does not apply.

III. CONCLUSION

Defendant CFD's Motion for Summary Adjudication of Emotional Distress Damages is DENIED.¹ This is not a proper topic for summary adjudication under Code of Civil Procedure section 437c, subdivision (f)(1) [*DeCastro West Chodorow & Burns, Inc. v. Superior Court (Initial Amalgamation, Ltd.)* (1996) 47 Cal.App.4th 410, 421-22].

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court

¹ Considering the merits of the motion are not considered, the evidentiary objections filed by Plaintiff and Defendant have not been considered; they are MOOT.